

Sunil Kumar v. State of U.P. And Another

Allahabad High Court · Single Judge · 3 May 2024 · 2024:AHC:80248 · Criminal Misc. Anticipatory Bail Application U/S 438 Cr.P.C. No. 4188 of 2024 · **Anticipatory bail application allowed, subject to standard conditions**

HEADNOTE

Not a Supply Code merits case — an anticipatory bail order under s.438 Cr.P.C. granted to a public-servant electricity official (an Executive Engineer/Assistant Engineer-level officer who had ordered permanent disconnection of a tubewell electricity connection) facing prosecution under IPC ss.420/467/468/471/120B, applying this Court's special-circumstances framework for entertaining a s.438 application directly (Vinod Kumar v. State of U.P., affirmed by the Constitution Bench in Ankit Bharti v. State of U.P.) and the Supreme Court's Sushila Aggarwal ruling on anticipatory bail. Recorded compactly given its criminal-procedure subject matter, which is distinct from the Supply Code framework central to this project; the underlying dispute (whether Clause 4.44 of the U.P. Electricity Supply Code, 2005 was properly followed in transferring a tubewell connection from a deceased original consumer's name to a subsequent land-purchaser, and the propriety of the later disconnection) is noted only as background context.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::anticipatory-bail-electricity-official-fraud-prosecution

Anticipatory bail granted to an electricity department official prosecuted for fraud/forgery in connection with a disputed tubewell-connection transfer and disconnection, applying the settled special-circumstances test for direct High Court applications under s.438

HOLDING

Anticipatory bail allowed. The applicant, an Assistant/Executive Engineer who had ordered disconnection of a tubewell connection at the request of the transferee-consumer (Smt. Shashi Kanta, whose transfer application under Clause 4.44 of the Supply Code was supported by a registered sale deed, mutation records, and regular bill payments), was found to have no personal antecedents, held a public-servant post without sanction to prosecute under s.197 Cr.P.C., and the case fell within the recognised special circumstances (Vinod Kumar, Ankit Bharti) justifying direct High Court recourse; following Sushila Aggarwal v. State (NCT of Delhi), anticipatory bail was granted till conclusion of trial subject to standard conditions.

¶ unnumbered order (full text)

FLAG Recorded compactly given its criminal-procedure/anticipatory-bail subject matter; the Clause 4.44 transfer-of-connection background is incidental to the bail analysis and not independently adjudicated.

PRINCIPLE TAGS

anticipatory-bail-electricity-official-fraud-prosecution Not a Supply Code merits case — an anticipatory bail order under s.438 Cr.P.C. granted to a public-servant electricity official (an Executive Engineer/Assistant Engineer-level officer who had ordered permanent disconnection of a tubewell electricity connection) facing prosecution under IPC ss.420/467/468/471/120B ¶ unnumbered order (full text)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE FRAUD/FORGERY ALLEGATIONS CONCERNING THE TUBEWELL CONNECTION TRANSFER AND DISCONNECTION

Expressly left open for trial; the Court disclaimed any opinion on the ultimate merits. ¶ para 28

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Vinod Kumar v. State of Uttar Pradesh [842560]	Sets out the special-circumstances test for entertaining a s.438 Cr.P.C.	Applied.	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Allahabad High Court (Full Bench)	application directly before the High Court without first approaching the Court of Sessions.			
<i>Ankit Bharti v. State of U.P.</i> [39550418] Allahabad High Court (Constitution Bench)	Affirms Vinod Kumar's special-circumstances framework for direct High Court applications under s.438 Cr.P.C.	Applied.	Court	Followed
<i>Sushila Aggarwal v. State (NCT of Delhi)</i> [123660783] Supreme Court	Governing law on the grant and duration of anticipatory bail under s.438 Cr.P.C.	Applied.	Court	Followed

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.